

		the question of the arbitrability of this matter, under the FAA, this action must be stayed pending the outcome of the appeal. (<i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736, 744.) However, even if California state law did apply, the Motion must still be granted. (<i>Smith v. Superior Ct. In & For Los Angeles Cnty.</i> (1962) 202 Cal. App. 2d 128, 131.) Code of Civil Procedure section 1294, subdivision (a), only prohibits automatic stays. The code specifically carves out a stay under Code of Civil Procedure section 916. In such instances, “an appeal from the denial of a motion to compel arbitration automatically stays all further trial court proceedings on the merits.” (<i>Varian Med. Sys., Inc. v. Delfino</i> (2005) 35 Cal. 4th 180, 190.) Therefore under either the FAA or California state law, the Motion must be granted. The court recognizes Plaintiff’s concern spoilation of evidence. The court orders Defendants to preserve all evidence responsive to the written discovery requests Plaintiff previously propounded. This order includes all documents and things which Defendants might otherwise object to producing as objections and producible evidence will be issues for either this court or the arbitrator to decide once the appeal is complete. The matter is stayed pending appeal. The court sets an OSC Re: Status of Appeal for September 21, 2026. Defendants shall give notice.
310	<i>The Learning Light Foundation, Inc. vs. City of Anaheim</i>	Cross-Complainant City of Anaheim’s motion for leave to file the first amended cross-complaint is GRANTED.

		The motion complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (See Code of Civ. Proc. § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [applying “a policy of great liberality in permitting amendments”]; see also Declaration of Joseph D. Larsen ¶¶ 5-7.) Cross-Complainant shall file and serve the first amended cross-complaint, as reflected in the supporting declaration of Joseph D. Larsen, Exhibit 1, within 5 days. Cross-Complainant shall give notice.
311	<i>Aghawani vs. Vershinin Dental Corporation</i>	Before the Court is a Motion to Place Documents Under Seal filed by plaintiff Lamis Aghawani. In the body of the motion, plaintiff states “Pseudonymous party has prepared a redacted version (a version with true names and identifying characteristics blacked out) of each of the documents checked above and is lodging it with the court.” However, the Court has not received copies of the redacted documents. Accordingly, the hearing on the motion is CONTINUED to July 6, 2026 at 1:30 p.m. in Dept. C24 to allow plaintiff to lodge copies of the redacted version of the documents. The redacted version of each document should indicate the ROA number of the original unredacted document and all redacted documents must be lodged in Department C24 not less than 10 court days prior to the continued hearing date. Additionally, this action was filed on April 18, 2025 and despite multiple extensions by the Court, the plaintiff has yet to serve the defendant with the Summons and Complaint. Accordingly, the Court sets an Order to Show Cause as to why the